

FEDERAL MARITIME COMMISSION

PETITION OF NATIONAL CUSTOMS
BROKERS AND FORWARDERS
ASSOCIATION OF AMERICA, INC.
FOR A LIMITED EXEMPTION FROM
CERTAIN TARIFF REQUIREMENTS OF
THE SHIPPING ACT OF 1984

Petition No. P5-03

Served: November 13, 2003

**ORDER DENYING NATIONAL CUSTOMS BROKERS
AND FORWARDERS ASSOCIATION OF AMERICA,
INC.3 REQUEST TO FILE A REPLY TO
COMMENTS**

On August 8, 2003, the National Customs Brokers and Forwarders Association of America, Inc. ("NCBFAA") submitted a petition requesting that the Commission initiate a rulemaking to exempt non-vessel-operating common carriers ("NVOCCs") from certain provisions of sections 8 and 10 of the Shipping Act, 46 U.S.C. app. § 1707 and 1709, which require NVOCCs to establish, publish, maintain and enforce tariffs setting forth ocean freight rates, thereby allowing NVOCCs to enter confidential service contracts with their shipper customers as carriers. NCBFAA also requests that it be allowed to reply to any comments filed in response to its petition, which is the issue addressed here.

Rule 69 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.69, governs the procedure for the filing of petitions and provides that replies to petitions filed with the Commission shall conform to the requirements of Rule 74, 46 C.F.R. § 502.74. Rule 74 governs the procedures for the filing of replies to pleadings, motions, applications, etc. and provides that replies to replies are not permitted. 46 C.F.R. § 502.74(a)(1).¹ Moreover, the Commission has reopened the comment period in this proceeding, which provides NCBFAA the opportunity it seeks.

CONCLUSION

THEREFORE, IT IS ORDERED That the National Customs Brokers and Forwarders Association of America, Inc.'s request to submit a reply to the comments filed in response to its Petition for Rulemaking is denied.

By the Commission.


Bryant L. VanBrakle
Secretary

¹ The Commission denied a similar request in Petition No. P8-03, Petition of BAX Global, Inc. for Rulemaking. See Order Denying BAX Global, Inc.'s Request to File a Reply to Comments (October 9, 2003).